

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-31

TPG PRESSURE, INC.,
COMPLAINANT

v.

EPIC FREIGHT SOLUTIONS LLC and
OMNI LOGISTICS LLC,
RESPONDENTS.

**JOINT RENEWED MOTION FOR CONFIDENTIAL
TREATMENT OF CERTAIN SPECIFIC DOCUMENTS**

Complainant TPG Pressure, Inc. (“TPG”) and Respondents Omni Logistics, LLC and Epic Freight Solutions LLC (“Respondents”) (collectively, the “Parties”), pursuant to 46 C.F.R. §§ 502.5(b) and 502.69, and the Presiding Officer’s May 15, 2024 Order Requiring the Parties to Supplement the Record, jointly move for confidential treatment of only a few select documents included in TPG’s Appendix.

The Parties submit that their request is narrowly tailored to seek confidential treatment only of documents that contain confidential, commercially sensitive information relating to Respondents’ business and the terms of Omni’s acquisition of Epic, disclosure of which could cause Respondents’ competitive harm and violate Respondents’ obligations to third parties. The information for which confidential treatment is sought has never been made public. Accordingly, the Parties submit that good cause exists to give confidential treatment to the documents identified in the table below. *See MSRF, Inc. v. Yang Ming Transport Co.*, Docket No. 22-21, 2022 WL 4355812 at *1 (ALJ Sep. 15, 2022) (granting confidential treatment of documents containing “sensitive, confidential business information, disclosure of which would cause commercial harm to Respondent[.]”)

<i>Appendix Volume</i>	<i>Bates Range</i>	<i>Description</i>	<i>Classification Requested for</i>	<i>Basis for Confidentiality Request</i>
Vol. IV	CApp010217	Deposition of Mr. Manzanarez on behalf of Epic Freight Solutions LLC	Page 30:20 and 22-23 of the identified deposition transcript	Contains confidential terms of Omni's acquisition of Epic
Vol. IV	CAPP010218-19	Deposition of Mr. Manzanarez on behalf of Epic Freight Solutions LLC	Page 37:7-25 and 38:1-21 of the identified deposition transcript	Contains confidential terms of Omni's acquisition of Epic
Vol. V	CApp010894	September 29, 2023 Private and Confidential Corporate Structure Chart	The entirety of CApp010894	Contains confidential, non-public information about the corporate structure and ownership of Omni and Epic, as well as other non-party entities, produced pursuant to the Parties' Stipulated Protective Order with an "Attorneys' Eyes Only" designation
Vol. V	CApp010895-903	Second Amended and Restated Operating Agreement of Epic Freight Solutions LLC, dated April 2, 2021	The entirety of CApp010895-903	Contains confidential, non-public information about the internal affairs, membership, management, and structure of Epic Freight Solutions LLC, produced pursuant to the Parties' Stipulated Protective Order with an "Attorneys' Eyes Only" designation

The Parties no longer seek confidential treatment of the remaining documents in TPG's Appendix not identified in the table above. Respondents submit that the documents and excerpts identified in the table above are of a non-public nature, which Respondents reasonably and in good faith believe to be commercially and competitively sensitive and proprietary in nature. Accordingly, the Parties jointly and respectfully request that the identified documents and excerpts be given confidential treatment under 46 C.F.R. § 502.141(j)(1).

Dated: May 30, 2024

Respectfully submitted,

PIERSON FERDINAND, LLP

BENESCH, FRIEDLANDER, COPLAN &
ARONOFF LLP

By: Gene M. Burd (per email consent)
Tiffany N. Compres (Fl Bar. No. 78118)
333 S.E. 2nd Ave., Suite 2000
Miami, Florida 33131
Tel: (305) 342.2957
tiffany.compres@pierferd.com

Gene M. Burd (D.C. Bar No. 1004330)
1101 Pennsylvania Ave. N.W., Suite 300
Washington, DC 20005
Telephone: (202) 803.5407
gene.burd@pierferd.com

*Counsel for Complainant Thompson Pipe
Group, Inc.*

By: Marc S. Blubaugh
Marc S. Blubaugh (Ohio Bar No. 0068221)
mblubaugh@beneschlaw.com
Nicholas P. Lacey (Ohio Bar No. 0100042)
nlacey@beneschlaw.com
41 S. High Street. Suite 2600
Columbus, OH 43215
Telephone: (614) 223-9300
Facsimile: (614) 223-9330

Counsel for Respondents

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 30th day of May, 2024, a true and correct copy of the foregoing

was served via electronic mail on:

Tiffany N. Compres, Esq. (tiffany.compres@pierferd.com)

Gene M. Burd (gene.burd@pierferd.com)

Yine Rodríguez Pérez (yine.rodriguezperez@pierferd.com)

Counsel for Complainant TPG Pressure, Inc.

/s/ Marc S. Blubaugh

Marc S. Blubaugh